
Case	Title / Nature of Case
2:00 PM LINE 1	
17-CLJ-03761	PERSOLVE, LLC VS. EVELYN A. ALVAREZ, ET AL
PERSOLVE, LLC EVELYN A. ALVAREZ	NADER SABAWI

CLAIM OF EXEMPTION

TENTATIVE RULING:

Evelyn Alvarez's claim of exemption is **GRANTED**.

Judgment creditor Persolve Legal Group, LLP objects to the claim of exemption filed by judgment debtor Evelyn Alvarez. On December 20, 2017, Persolve, LLC obtained a judgment in the amount of \$3,567.10 against Alvarez, which was later assigned to Persolve Legal Group, LLP

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).)

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Alvarez has submitted a financial statement. Persolve objects to Alvarez's \$900/month clothing expense, and \$850/month utilities and telephone expense. Persolve states that 20% of Alvarez's biweekly disposable income is \$437.07 (that is, 20% of her net biweekly income of \$2,185.37) and seeks \$159.90 of Alvarez's "net disposable biweekly income."

Alvarez is the single parent of four minor children. She does not receive child support, and states that the children's other parent is unemployed. Her expenses are not unreasonable for five people. Indeed, she has not reported monthly payments for medical or dental expenses, although she recently took all four children to the dentist, and still owes for an emergency room visit for her son.

Based on her representation, the court finds that Alvarez's income is necessary to support herself and her family, that is, her four minor children. (Code Civ. Proc., § 706.051.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, judgment creditor's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 2**

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION TO COMPEL DEFENDANT YANG MIN YANG TO PROVIDE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES (SET TWO, NO. 17-26.)

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion to Compel Defendant Yang Min Yang to Provide Responses to Plaintiff's Special Interrogatories (Set Two, No. 17-26)" and "Request for Imposing Monetary Sanctions against Defendant and His Attorney in the Amount of \$3,000," filed March 13, 2026, is **GRANTED in part**. (Code Civ. Proc. § 2023.010 et. seq. [discovery misuse].)

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Special Interrogatories, Set Two.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.
